

## 26STCV06161 26STCV06161

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Case Number: 26STCV06161 Hearing Date: July 20, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

JANE DOE,

Plaintiff,

vs.

CRISPIN GLOVER,

Defendant.

Case No.:

26STCV06161

Hearing Date:

July 20, 2026

[TENTATIVE] ORDER ON DEFENDANT'S special motion to strike (ANTI-SLAPP MOTION)

I. BACKGROUND

Defendant Cripsin Glover ("Glover") allegedly invited Plaintiff Jane Doe ("Doe") to move into one of his homes and work as Glover's assistant. Once Doe moved in, Doe allegedly learned Glover intended Doe to be Glover's girlfriend and work for him for free. When Doe left the home without Glover's consent, Glover locked Doe out and asked her to find a new place to live. Doe allegedly attempted to re-enter; in response, Glover choked Doe and filed a police report against her for trespass. Doe sues Glover for five causes of action, including malicious prosecution.

On June 3, 2026, Glover filed the instant special motion to strike (or "anti-SLAPP motion") to the third cause of action for malicious prosecution under Code of Civil Procedure section 425.16.[1] Doe filed an opposition. Glover filed a reply.

## II. REQUEST FOR JUDICIAL NOTICE

Glover requests that the Court take judicial notice of certain documents. As to those requests, the Court GRANTS the request for judicial notice as to all documents.

## III. EVIDENTIARY OBJECTIONS

A special motion to strike under CCP section 425.16 uses a "summary-judgment-like procedure" and follows the same rules as CCP section 437c in that the evidence relied upon in the supporting or opposing papers must be admissible. (*Sweetwater Union High Sch. Dist. v. Gilbane Bldg. Co.* (2019) 6 Cal. 5th 931, 945; see also *Tuchscher Dev. Enters., Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal. App. 4th 1219, 1237.)

"Authentication of a writing is required before it may be received in evidence." (Evid. Code, § 1401, subd. (a).) "Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law [Citations]... ." (*Jacobson v. Gourley* (2000) 83 Cal. App. 4th 1331, 1334.)

### A. Glover's Objections

The Court rules on Glover's objections to Doe's evidence as follows:

1. All objections to Doe's declaration are OVERRULED, unless otherwise noted.

a. SUSTAINED, as to lack of personal knowledge - ¶ 5; ¶ 8 as to "Mr. Glover's conduct after the incident also shows he did not genuinely fear me."; ¶ 13; ¶ 25 as to "He knew I would not have the same support system in Los Angeles that I had in the United Kingdom. He knew I would be dependent on the housing and stability he repeatedly promised."; ¶ 26; ¶ 28; ¶ 30; ¶ 33 as to "He knew I was dependent on the housing and work arrangement he had promised."; ¶ 92; ¶ 98; ¶ 104; ¶ 107; ¶ 108; ¶ 109; ¶ 121 as to "he made no genuine effort to pursue it..."; ¶ 134.

b. SUSTAINED, as to oral testimony to prove content of a writing - ¶ 7, as to "I got a cited dismissal after he filed a restraining order petition that he then failed to prosecute by not attending Court"; ¶ 15; ¶ 29 as to "After wrongfully evicting me, he followed up with an email still trying to get me to play his leading lady in his upcoming production."; ¶ 101.

c. SUSTAINED, as to argumentative - ¶ 9; ¶ 14; ¶ 37; ¶ 44; ¶ 45; ¶ 53 as to "Mr. Glover's declaration also falsely tries to portray me as someone who targeted him for money."; ¶ 54; ¶ 79 as to "Mr. Glover's declaration attempts to make himself the victim, but it was..."; ¶ 93; ¶ 96; ¶ 97 as to "If Mr. Glover truly believed I was dangerous and truly needed protection from me, he would have made genuine efforts to serve me and appear in court."; ¶ 125; ¶ 126; ¶ 131.

d. SUSTAINED, as to lack of authentication – Ex. 7.

#### IV. LEGAL STANDARD

“Litigation of an anti-SLAPP motion involves a two-step process. First, ‘the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.’ [Citation.] Second, for each claim that does arise from protected activity, the plaintiff must show the claim has “at least ‘minimal merit.’ [Citation.]” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009, citations omitted.) To separate communications which form the source of the dispute from those that merely provide evidence of it, courts ask whether “the same dispute would exist” if there were no pending threat of litigation. (*Gotterba v. Travolta* (2014) 228 Cal.App.4th 35, 42.)

As to the second step of the inquiry, a plaintiff seeking to demonstrate the merit of the claim “may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.” (*Sweetwater Union High School District v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 940, citations omitted.)

A party opposing a special motion to strike has the burden to “state [] and substantiate [] a legally sufficient claim.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88 & 93.) “‘Put another way, the party “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the defendant is credited.”’ [Citations.]” (*Id.* at pgs. 88-89.) To that end, the party must present competent evidence, “that would be admissible at trial.” (*HMS Capital, Inc. v. Lawyers Title Co.* (2004) 118 Cal.App.4th 204, 212.) “[D]eclarations may not be based upon ‘information and belief’ [citation]” and documents submitted without the proper foundation will not be considered. (*Id.*) The complaint, even if verified, is insufficient to carry the plaintiff’s shifted burden. (*Roberts v. Los Angeles County Bar Association* (2003) 105 Cal.App.4th 604, 614; *Karnazes v. Ares* (2016) 244 Cal.App.4th 344, 354 [“pleadings do not constitute evidence”]; see also *Burke, Anti-SLAPP Litigation* (The Rutter Group, Civil Litigation Series 2018 §5:13) [“To satisfy prong two, the plaintiff must submit admissible evidence that if credited is sufficient to sustain a favorable judgment against the legal theories asserted by the defendant.”].)

“A cause of action is subject to a special motion to strike if the defendant shows that the cause of action arises from an act in furtherance of the defendant’s constitutional right of petition or free speech in connection with a public issue and the plaintiff fails to demonstrate a probability of prevailing on the claim. [Citations.]” (*Digerati Holdings, LLC v. Young Money Entertainment, LLC* (2011) 194 Cal.App.4th 873, 883.)

“An ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ is defined by statute to include ‘(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.’ [Citation.] If the defendant shows that the cause of action arises from a statement described in clause (1) or (2) of section 425.16, subdivision (e), the defendant is not required to separately demonstrate that the statement was made in connection with a ‘public issue.’ [Citation.]” (*Id.*)

“A cause of action is one ‘arising from’ protected activity within the meaning of section 425.16, subdivision (b)(1) only if the defendant’s act on which the cause of action is based was an act in furtherance of the defendant’s constitutional right of petition or free speech in connection with a public issue. [Citation.] In deciding whether the ‘arising from’ requirement is satisfied, ‘the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’ [(Code Civ. Proc. § 425.16(b)(2).)] Whether the ‘arising from’ requirement is satisfied depends on the ‘gravamen or principal thrust’ of the claim. [(*Episcopal Church Cases* (2009) 45 Cal.4th 467, 477, quoting *Martinez v. Metabolife International, Inc.* (2003) 113 Cal.App.4th 181, 193.)] A cause of action does not arise from protected activity for purposes of the anti-SLAPP statute if the protected activity is merely incidental to the cause of action. [(*Martinez*, 113 Cal.App.4th at pg. 188.)]” (*Digerati Holdings, LLC*, 194 Cal.App.4th at pgs. 883-884.) To show that a claim arises from protected activity under §425.16(b)(1), it is not sufficient to show that the claim “was filed after, or because of, protected

activity, or when protected activity merely provides evidentiary support or context for the claim.” (Rand Resources, LLC v. City of Carson (2019) 6 Cal.5th 610, 621.) “Rather, the protected activity must ‘supply elements of the challenged claim.’ [Citation.]” (Id., citations omitted.)

“At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 396, emphasis added.)

## V. DISCUSSION

Glover requests the Court strike the third cause of action for malicious prosecution as it arises from Glover’s protected exercise of free-speech rights. Pursuant to section 425.16, subdivision (b), a cause of action against a person arising from the person’s right of petition or free speech shall be subject to a special motion to strike unless the court determines the plaintiff has established there is a probability the plaintiff will prevail on the claim.

### A. Protected Activity

Glover asserts Glover’s activity as to the claim for malicious prosecution is protected, satisfying the first prong of an anti-SLAPP motion, as the claim consists of Glover making a statement to or in connection with a legal/police proceeding. Doe’s complaint alleges Glover gave a false police report and submitted a fraudulent petition for restraining order against Doe. (Complaint ¶ 1.)

The Anti-SLAPP statute defines relevant protected activity as follows:

“(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (§ 425.16, subd. (e).)

Glover asserts the alleged activity is protected as it is both a statement made before an official proceeding authorized by law and a statement made in connection with an issue under consideration or review by an official proceeding authorized by law.

Glover first argues making a police report and seeking a domestic violence restraining order are protected activities under the anti-SLAPP statute. Generally speaking, reporting to and seeking assistance from law enforcement, and related court filings, litigation, and court communications in seeking a restraining order, are petitioning activity within the meaning of section 425.16(e). “Section 425.16 is construed broadly, to protect the right of litigants to the utmost freedom of access to the courts without the fear of being harassed subsequently by derivative tort actions.” (Rohde v. Wolf (2007) 154 Cal.App.4th 28, 35.) Courts have thus adopted “a fairly expansive view of what constitutes litigation-related activities within the scope of section 425.16.” (Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP (2017) 18 Cal.App.5th 95, 113.) However, there exists an exemption when the defendant concedes, or the evidence conclusively establishes, the asserted protected speech or activity was illegal as a matter of law. (Zucchet v. Galardi (2014) 229 Cal.App.4th 1466, 1478.) In such situations, a defendant is precluded from using an anti-SLAPP motion to strike the plaintiff’s action. (Ibid.)

Here, Doe alleges Glover’s activity arose out of illegal activity of filing a false criminal report with police, an act not in furtherance of his constitutional rights. However, Glover submitted a declaration attesting he “accurately reported [] facts to law enforcement.” (Mot., Glover Decl. ¶ 44.) Glover has not conceded to the police report being false, and thus not protected under section 425.16. Glover similarly did not concede any portions of the restraining order being false. Therefore, the subject activity is considered protected activity for purposes of determining the first prong of the anti-SLAPP motion, unless

Doe can conclusively establish the speech or activity was illegal as a matter of law.

Glover has met his initial burden of showing the activity satisfies the first prong of section 425.16. The burden to demonstrate the probability of prevailing on these causes of action shifts to Doe.

## B. Probability of Prevailing

Under the second prong of the anti-SLAPP analysis, Doe has the shifted burden of establishing a probability of prevailing on her cause of action for malicious prosecution. (§ 425.16, subd. (b)(3).) A plaintiff “cannot simply rely on his or her pleadings, even if verified,” but must submit “competent, admissible evidence.” (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 480; see also *Morrow v. Los Angeles Unified School District* (2007) 149 Cal.App.4th 1424, 1444.) In evaluating the parties’ submissions, the Court considers the pleadings and admissible evidence presented by both sides, without weighing credibility, and must grant the motion “if, as a matter of law, the defendant’s evidence supporting the motion defeats the plaintiff’s attempt to establish evidentiary support for the claim.” (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal. 4th 811, 821 [emphasis original].) The question is whether the plaintiff has presented evidence in opposition to the defendant’s motion that, if believed by the trier of fact, is sufficient to support a judgment in the plaintiff’s favor. (*Zamos v. Stroud* (2004) 32 Cal.4th 958, 965.)

“To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff’s, favor [citations]; (2) was brought without probable cause [citations]; and (3) was initiated with malice [citations].” (*Lanz v. Goldstone* (2015) 243 Cal.App.4th 441, 458 (quoting *Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50).)

### 1. False Police Report

As noted in Glover’s moving papers, merely making ‘false’ police reports does not qualify as a prior action for purposes of malicious prosecution, nor does a warrantless arrest. (*Van Audenhove v. Perry* (2017) 11 Cal.App.5th 915, 922.) Doe’s complaint specifically states “[n]o charges were brought forth upon Mr. Glover’s false police report.” (Complaint ¶ 21.) There are no allegations of Doe ever being arrested, pursuant to warrant. As there is no indication of Glover’s allegedly false statement resulting in an arrest warrant or any charges against Doe, Glover’s statements to the police are not a potentially valid theory for malicious prosecution.

### 2. Restraining Order

The only remaining avenue for malicious prosecution concerns Glover allegedly filing a fraudulent petition for restraining order. It is undisputed the subject restraining order was commenced by or at the direction of Glover. It is also undisputed the restraining order was dismissed, indicating legal termination in Doe’s favor. Parties dispute whether the restraining order was brought without probable cause or initiated with malice.

Doe argues the action is brought without probable cause as Glover brought the restraining order under false allegations. “[T]he question of probable cause is whether it was objectively reasonable for the defendant . . . to suspect the plaintiff . . . had committed a crime.” (*Greene v. Bank of America* (2013) 216 Cal.App.4th 454, 465.) Doe submitted a declaration in support of this assertion, attesting she did not attack Glover on the day of the alleged incident and that Glover provided a false and misleading version of events, later used as a basis for the restraining order petition. (Opp., Doe Decl. ¶¶ 80, 83, 90.) Contrary to Glover’s objections, Doe’s declaration does not lack foundation or personal knowledge, nor is it otherwise subject to objection. As the Court is obligated to review a plaintiff’s evidence as if believed by a trier of fact, the Court finds Doe’s evidence sufficient to establish lack of probable cause for purposes of this motion.

Doe also argues Glover’s failure to prosecute the case demonstrates a lack of probable cause. Failure to prosecute or eventual dismissal is not indicative of whether a defendant reasonably believed there was probable cause. (*Verdier v. Verdier*

(1957) 152 Cal.App.2d 348, 352, fn. 3.) Therefore, the Court does not consider this argument.

Doe next argues Glover acted with malice in filing the restraining order. Malice is not limited to a showing of hostility or ill will—it also includes “if the defendant had no substantial grounds for believing in the plaintiff’s guilt, but, nevertheless, instigated proceedings against the plaintiff, [as] it is logical to infer that the defendant’s motive was improper.’ ” (Greene, supra, 216 Cal.App.4th at p. 464-465, internal citation omitted.) “Malice may be inferred from want of probable cause but want of probable cause cannot be inferred from malice, but must be affirmatively shown by the plaintiff.” (Verdier, supra, 152 Cal.App.2d at p. 354.) As Doe has provided sufficient evidence, if believed by a trier of fact, to establish Glover had no probable cause to file the restraining order, and thus had no substantial grounds, Doe has also provided sufficient evidence to establish a finding of malice.

Glover argues Glover as a complete defense to any claim of malicious prosecution as he filed the petition for restraining order on the advice of legal counsel. “Good faith reliance on advice of counsel, after truthful disclosure of all the relevant facts, is a complete defense to a claim of malicious prosecution.” (Bisno v. Douglas Emmett Realty Fund 1988 (2009) 174 Cal.App.4th 1534, 1544.) Glover attested he filed his petition “on the advice of legal counsel,” but provided no detail as to what information he told to counsel. (Mot., Glover Decl. ¶ 47.) There is insufficient evidence to establish Glover truthfully disclosed all relevant facts to counsel prior to counsel advising Glover to file the restraining order. Therefore, Glover has failed to provide evidence of essential elements of this defense.

However, the Court concludes that Glover’s seeking of a domestic violence restraining order cannot be the basis for a malicious prosecution cause of action. (S.A. v. Maiden (2014) 229 Cal.App.4th 27, 38 [“We conclude both [Bidna v. Rosen (1993) 19 Cal.App.4th 27]’s holding and reasoning support our conclusion that S.A. cannot state a malicious prosecution cause of action against Maiden for N.A.’s request, filed in the family law court, for the initial DVPA restraining order”].) In S.A., the court noted that Bidna “applied the California Supreme Court’s reasoning in Sheldon Appel to establish a ‘bright-line rule’ barring malicious prosecution causes of action arising out of family law proceedings” and concluded that it properly applied to actions under the Domestic Violence Prevention Act (DVPA). (S.A., at p. 36-38.) Courts have concluded that the same reasoning bars malicious prosecution causes of action based on civil harassment and workplace violence restraining orders. (Siam v. Kizilbash (2005) 130 Cal.App.4th 1563, 1571 [reversing trial court’s denial of anti-SLAPP motion on a malicious prosecution cause of action based on an unsuccessful civil harassment petition]; Robinzine v. Vicory (2006) 143 Cal.App.4th 1416, 1420–1421 [reversing trial court’s denial of anti-SLAPP motion on a malicious prosecution cause of action based on an unsuccessful workplace violence petition].) Accordingly, the restraining order proceedings in this case cannot be the basis for the malicious prosecution cause of action.

## VII. CONCLUSION

Based on the foregoing, Glover’s special motion to strike the third cause of action for malicious prosecution in Doe’s complaint is GRANTED.

Moving Party is ordered to give notice.

DATED: July 20, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at [SMCDEPT730@lacourt.org](mailto:SMCDEPT730@lacourt.org) with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.